



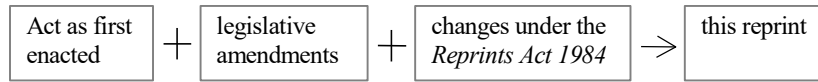
Western Australia

Crown Suits Act 1947

Reprint 3: The Act as at 31 October 2014

Guide for using this reprint

What the reprint includes



Endnotes, Compilation table, and Table of provisions that have not come into operation

1. Details about the original Act and legislation that has amended its text are shown in the Compilation table in endnote 1, at the back of the reprint. The table also shows any previous reprint.
2. Validation, transitional, savings, modifying or other provisions identified in the Compilation table may be important. The table may refer to another endnote setting out the text of these provisions in full.
3. A table of provisions that have not come into operation, to be found in endnote 1a if it is needed, lists any provisions of the Act being reprinted that have not come into operation and any amendments that have not come into operation. The full text is set out in another endnote that is referred to in the table.

Notes amongst text (italicised and within square brackets)

1. If the reprint includes a section that was inserted, or has been amended, since the Act being reprinted was passed, editorial notes at the foot of the section give some history of how the section came to be as it is. If the section replaced an earlier section, no history of the earlier section is given (the full history of the Act is in the Compilation table).

Notes of this kind may also be at the foot of Schedules or headings.

2. The other kind of editorial note shows something has been —
 - removed (because it was repealed or deleted from the law); or
 - omitted under the *Reprints Act 1984* s. 7(4) (because, although still technically part of the text, it no longer has any effect).

The text of anything removed or omitted can be found in an earlier reprint (if there is one) or one of the written laws identified in the Compilation table.

Reprint numbering and date

1. The reprint

number (in the footer of each page of the document) shows how many times the Act has been reprinted. For example, numbering a reprint as “Reprint 3” would mean that the reprint was the 3rd reprint since the Act was passed. Reprint numbering was implemented as from 1 January 2003.

2. The information in the reprint is current on the date shown as the date as at which the Act is reprinted. That date is not the date when the reprint was published by the State Law Publisher and it is probably not the date when the most recent amendment had effect.

~~Level 3 End-point
Assessment for
ST0070/AP03
Business
Administrator (9473-
22)~~

Reprinted under the
Reprints Act 1984 as

at 31 October 2014

Western Australia

Crown Suits Act 1947

~~May 2021 Version 1.0~~

End-Point Assessment Recording Forms
For Centres / End-Point Assessment Customers

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Version and date	Change detail	Section
May 2021 V1.0	Launch	All

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1—Introduction

What is in this document

~~Recording forms to be used by Centres / End-point Assessment Customers / Employers / Training Providers:~~

~~Portfolio evidence reference form and declaration of authenticity~~

~~Project/improvement template and declaration of authenticity~~

~~This document must be used alongside the End-point Assessment Pack for Centres / End-point Assessment Customers document.~~

How to use forms

~~Centres / End-point Assessment Customers / Employers / Training Providers must use the forms provided by City & Guilds in the format laid out in this document.~~

Portfolio evidence reference form

~~In the evidence reference column the apprentice should provide a clear reference to the piece of evidence that links to the relevant area of the standard. This could be a file name, or more detailed description.~~

~~If the training provider/employer is asked to review the evidence that has been submitted to City & Guilds, the originally submitted form should be added to and amended indicating the revised evidence.~~

~~In the case of resitting the assessment the apprentice should only complete the sections for any new evidence submitted.~~

Project/improvement template

~~This is a guidance document which can be used by the apprentice to fully detail the content of the~~

~~Project/improvement process they have worked on over a set period of time. A similar document~~

~~can be used, however it is advisable that any document ensures the key requirements are covered~~

~~and easily identified.~~

**Level 3 End-point Assessment for ST0070/AP03
Business Administrator (9473-22)
Assessment 703: Portfolio evidence reference
form and declaration of authenticity**

Apprentice



Reprinted under the
Reprints Act 1984
as Enrolment
number
at 31 October 2014

Western Australia

Crown Suits Act 1947

**An Act to repeal the *Crown Suits Act 1898*², and to make better
provision for suits by and against the Crown and for other purposes
relative thereto and to the constitutional powers of the Crown.**

1. Short title

This Act may be cited as the *Crown Suits Act 1947*¹.

[2. Omitted under the Reprints Act 1984 s. 7(4)(f).]

3. Term used: Crown

In this Act, the term **Crown** means the Crown in right of the
Government of Western Australia.

4. Application of this Act

This Act shall apply to any cause of action which accrues after the commencement of this Act ¹.

5. Crown to sue and be sued as subject

(1) Subject to this Act, the Crown may sue and be sued in any court or otherwise competent jurisdiction in the same manner as a subject.

(2) Every proceeding shall be taken by or against the Crown under the title “the State of Western Australia”.

[6. Deleted by No. 20 of 2005 s. 8(1).]

7. Statutory rights preserved where already given

Nothing in this Act shall affect —

(a) the rights or liabilities of any corporate body or instrumentality of the Crown created by any Act of Parliament;

(b) any right of action which is conferred on the subject by any Act of Parliament against any corporate body or instrumentality of the Crown or any official or person nominated as a defendant on behalf of the Crown;

(c) any right or liability by law or custom established of Her Majesty’s Attorney General to sue or be sued on behalf of the Crown.

8. Joinder of Crown in proceedings between subject and subject

(1) When in any action, cause or proceeding between litigants in any civil court in Western Australia in which the Crown is not a party it appears to the court that the constitutional rights of the Crown may be directly or indirectly affected, or any question arises as to the constitutional validity of any Act of Parliament of the State, the Crown may obtain leave by its Attorney

General to intervene, or the court may order that the Crown be joined as a party.

- (2) Where any such question arises in any civil court, except the Supreme Court, the Supreme Court or a judge thereof may, on the application of a party or of the Attorney General, remove the proceedings into the Supreme Court for trial and determination.
- (3) Every such intervention or joinder or removal shall be on such terms and conditions as the court shall deem just.
- (4) In this section *Act of Parliament* includes an ordinance passed before the grant of responsible government to the State.

9. Same process available to Crown and subject

Subject to this Act, the same process shall be available both to the Crown and to the subject for the determination and enforcement of claims in Her Majesty's civil courts.

10. Method of recovering judgment against Crown

- (1) No execution or other process in the nature of execution shall be issued out of any court against the Crown, but after any judgment has been given against the Crown the registrar of the Supreme Court shall give to the party in whose favour the judgment is given a certificate of such judgment in the prescribed form and sealed with the seal of the Supreme Court.
- (2) On the receipt of such certificate the Governor shall cause to be charged to the Consolidated Account the amount of such judgment and costs to the person entitled to recover the same.

[Section 10 amended by No. 6 of 1993 s. 11; No. 49 of 1996 s. 64; No. 77 of 2006 s. 4.]

11. Writs of extent and *capias ad satisfaciendum* abolished

The writ of extent and the writ of *capias ad satisfaciendum* shall no longer be available at the instance of the Crown for the

recovery of debts and judgments and the same are hereby abolished.

12. Rules of Court

The judges of the Supreme Court or any 2 of them may make rules governing practice or procedure which in their opinion requires to be specially prescribed for the purpose hereof, and subject thereto the rules of the Supreme Court or of any competent court in which an action is brought by or against the Crown shall apply as far as applicable to the practice and procedure to be observed in such action.

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Notes

¹ This reprint is a compilation as at 31 October 2014 of the *Crown Suits Act 1947* and includes the amendments made by the other written laws referred to in the following table. The table also contains information about any reprint.

Compilation table

Apprentice declaration:

~~I confirm that all work submitted is my own, and that I have acknowledged any sources I have used.~~

<u>Short title</u> Apprentice	<u>Number and year</u>	<u>Assent</u> Date	<u>Commencement</u>
<u>Crown Suits Act 1947</u>	<u>11 of 1947</u> (11 Geo. VI No. 11)	<u>1 Nov 1947</u>	<u>1 Nov 1947</u>
<u>Crown Suits Act Amendment Act 1954</u>	<u>22 of 1954</u> (3 Eliz. II No. 22)	<u>7 Oct 1954</u>	<u>7 Oct 1954</u>
<u>Reprint of the Crown Suits Act 1947 approved 14 Apr 1971</u> (includes amendments listed above)			
<u>Acts Amendment (Asbestos Related Diseases) Act 1983</u> Pt. III	<u>84 of 1983</u>	<u>22 Dec 1983</u>	<u>19 Jan 1984</u> (see s. 2)
<u>Financial Administration Legislation Amendment Act 1993 s. 11</u>	<u>6 of 1993</u>	<u>27 Aug 1993</u>	<u>1 Jul 1993</u> (see s. 2(1))
<u>Financial Legislation Amendment Act 1996 s. 64</u>	<u>49 of 1996</u>	<u>25 Oct 1996</u>	<u>25 Oct 1996</u> (see s. 2(1))
<u>Reprint 2: The Crown Suits Act 1947 as at 9 May 2003</u> (includes amendments listed above)			
<u>Acts Amendment and Repeal (Courts and Legal Practice) Act 2003 s. 90</u>	<u>65 of 2003</u>	<u>4 Dec 2003</u>	<u>1 Jan 2004</u> (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5722)
<u>Limitation Legislation Amendment and Repeal Act 2005 Pt. 4 ³</u>	<u>20 of 2005</u>	<u>15 Nov 2005</u>	<u>15 Nov 2005</u> (see s. 2(1))
<u>Financial Legislation Amendment and Repeal Act 2006 s. 4</u>	<u>77 of 2006</u>	<u>21 Dec 2006</u>	<u>1 Feb 2007</u> (see s. 2(1) and <i>Gazette</i> 19 Jan 2007 p. 137)

<u>Short title</u>	<u>Apprentice</u>	<u>Number</u>	<u>Assent</u>	<u>Date</u>	<u>Commencement</u>
		<u>and year</u>			

Reprint 3: The Crown Suits Act 1947 as at 31 Oct 2014 (includes amendments listed above)

² The provision in this Act repealing

Line manager declaration:

~~I confirm~~ that ~~Act~~ has been omitted from this reprint~~all work was conducted~~
under ~~conditions designed to assure~~ the Reprints Act 1984 s. 7(4)(f).

³ The Limitation Legislation Amendment~~authenticity of the apprentice's~~
~~work,~~ and Repeal Act 2005 s. 8(2) reads as follows:

(2) The Crown Suits Act 1947 section 6, as it was immediately before
commencement day, continues to apply to causes of action~~am~~
~~satisfied~~ that accrued before commencement day as if
subsection (1) had not been enacted.

Defined terms

Defined terms

*[This is a list, ~~to the best~~ of terms defined and the provisions where
they are defined. The list is not part ~~my knowledge, the work~~
~~produced is solely that~~ of the *law.*]~~apprentice.~~*

Defined term	Provision(s)
Act of Parliament	8(4)
Crown	3

Defined terms

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Defined terms

By Authority: JOHN A. STRIJK, Government Printer

Line manager		Date	
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Training Provider declaration (if appropriate):

~~I confirm that the evidenced presented by the apprentice is ready for End-point Assessment. It is valid, authentic, reliable and current and sufficient to meet the requirements of the relevant standard.~~

Training Provider		Date	
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~~Level 3 End-point Assessment for ST0070/AP03 Business Administrator (9473-22)~~

~~Assessment 703: Portfolio evidence reference form~~

Evidence reference form				
Standard reference		Evidence type	Evidence reference	IEPA comments
		Apprentice / Employer / Training Provider	Apprentice / Employer / Training Provider	IEPA only
Skills				
IT	Skilled in the use of multiple IT packages and systems relevant to the organisation in order to:			

Crown Suits Act 1947

Defined terms

	write letters or emails, create proposals, perform financial processes, record and analyse data. Examples include MS Office or equivalent packages. Able to choose the most appropriate IT solution to suit the business problem. Able to update and review databases, record information and produce data analysis where required.			
Record and document production	Produces accurate records and documents including: emails, letters, files, payments, reports and proposals. Makes recommendations for improvements and present solutions to management. Drafts correspondence, writes reports and able to review others' work. Maintains records and files, handles confidential information in compliance with the organisation's procedures. Coaches others in the processes required to complete these tasks.			

Defined terms

Interpersonal skills	Builds and maintains positive relationships within their own team and across the organisation. Demonstrates ability to influence and challenge appropriately. Becomes a role model to peers and team members, developing coaching skills as they gain area knowledge.			
Communications	Demonstrates good communication skills, whether face to face, on the telephone, in writing or on digital platforms. Uses the most appropriate channels to communicate effectively. Demonstrates agility and confidence in communications, carrying authority appropriately. Understands and applies social media solutions appropriately. Answers questions from inside and outside of the organisation, representing the organisation or department.			
Quality	Completes tasks to a high standard. Demonstrates the necessary level of expertise required to			

Crown Suits Act 1947

Defined terms

	complete tasks and applies themselves to continuously improve their work. Is able to review processes autonomously and make suggestions for improvements. Shares administrative best practice across the organisation e.g. coaches others to perform tasks correctly. Applies problem solving skills to resolve challenging or complex complaints and is a key point of contact for addressing issues.			
Planning and organisation	Takes responsibility for initiating and completing tasks, manages priorities and time in order to successfully meet deadlines. Positively manages the expectations of colleagues at all levels and sets a positive example for others in the workplace. Makes suggestions for improvements to working practice, showing understanding of implications beyond the immediate environment (eg impact on clients, suppliers, other parts of			

Defined terms

	the organisation). Manages resources eg equipment or facilities. Organises meetings and events, takes minutes during meetings and creates action logs as appropriate. Takes responsibility for logistics eg travel and accommodation.			
Knowledge				
The organisation	Understands organisational purpose, activities, aims, values, vision for the future, resources and the way that the political/economic environment affects the organisation.			
Value of their skills	Knows organisational structure and demonstrates understanding of how their work benefits the organisation. Knows how they fit within their team			
Stakeholders	Has a practical knowledge of managing stakeholders and their differing relationships to an organisation. This includes internal and external			

Crown Suits Act 1947

Defined terms

	customers, clients and/or suppliers. Liaises with internal/external customers, suppliers or stakeholders from inside or outside the UK. Engages and fosters relationships with suppliers and partner organisations.			
Relevant regulation	Understands laws and regulations that apply to their role including data protection, health & safety, compliance etc. Supports the company in applying the regulations.			
Policies	Understands the organisation's internal policies and key business policies relating to sector.			
External environment factors	Understands relevant external factors eg market forces, policy & regulatory changes, supply chain etc. and the wider business impact). Where necessary understands the international/ global market in which the employing organisation is placed.			
Behaviours				

Defined terms

Professionalism	Behaves in a professional way. This includes: personal presentation; respect, respecting and encouraging diversity to cater for wider audiences; punctuality and attitude to colleagues, customers and key stakeholders. Adheres to the organisation's code of			
Personal qualities	Shows exemplary qualities that are valued including integrity, reliability, self-motivation, being pro-active and a positive attitude. Motivates others where responsibility is shared			
Managing performance	Takes responsibility for their own work, accepts feedback in a positive way, uses initiative and shows resilience. Also takes responsibility for their own development, knows when to ask questions to complete a task and informs their line manager when a task is complete. Performs thorough self-assessments of their work and complies with the organisation's procedures.			
Adaptability	Is able to accept and deal with changing priorities			

Defined terms

	related to both their own work and to the organisation			
Responsibility	Demonstrates taking responsibility for team performance and quality of projects delivered. Takes a clear interest in seeing that projects are successfully completed and customer requests handled appropriately. Takes initiative to develop own and others' skills and behaviours			

Level 3 End-point Assessment for ST0070/AP03 Business Administrator (9473-22)

Assessment 704: Project/improvement declaration of authenticity

Apprentice		Enrolment number	
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Apprentice declaration:

I confirm that all work submitted is my own, and that I have acknowledged any sources I have used.

Apprentice		Date	
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Line manager declaration:

I confirm that all work was conducted under conditions designed to assure the authenticity of the apprentice's work, and am satisfied that, to the best of my knowledge, the work produced is solely that of the apprentice.

Line manager		Date	
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Training Provider declaration (if appropriate):

I confirm that the evidenced presented by the apprentice is ready for End-point Assessment. It is valid, authentic, reliable and current and sufficient to meet the requirements of the relevant standard.

Training Provider		Date	
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Assessment 704: Project/improvement template

Apprentice Name	Assessment date
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[illegible]

Defined terms

[illegible]

Defined terms

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Defined terms

Communication with stakeholders

Monitoring and reporting results

Defined terms

Reflection

Defined terms

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